

COUR PERMANENTE DE JUSTICE INTERNATIONALE

SÉRIE A/B

ARRÊTS, ORDONNANCES ET AVIS CONSULTATIFS

FASCICULE N° 44

TRAITEMENT DES NATIONAUX POLONAIS
ET DES AUTRES PERSONNES D'ORIGINE
OU DE LANGUE POLONAISE DANS LE
TERRITOIRE DE DANTZIG

AVIS CONSULTATIF DU 4 FÉVRIER 1932

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ADVISORY OPINION OF FEBRUARY 4th, 1932

PERMANENT COURT OF INTERNATIONAL JUSTICE

SERIES A./B.

JUDGMENTS, ORDERS AND ADVISORY OPINIONS

FASCICULE No. 44

TREATMENT OF POLISH NATIONALS
AND OTHER PERSONS OF POLISH ORIGIN
OR SPEECH IN THE DANZIG TERRITORY

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TREATMENT OF POLISH NATIONALS
AND OTHER PERSONS OF POLISH ORIGIN
OR SPEECH IN THE DANZIG TERRITORY

Legal status of the Free City of Danzig.—Treaty of Versailles of June 28th, 1919; Convention of Paris between Poland and the Free City of Danzig of November 9th, 1920; Constitution of the Free City; guarantee of the Constitution by the League of Nations. —The right of Poland to submit to the High Commissioner of the League of Nations at Danzig disputes concerning the Constitution (Treaty of Versailles, Art. 103; Convention of Paris, Art. 39).—Interpretation of Article 104: 5 of the Treaty of Versailles; relation between that provision and Article 33, paragraph 1, of the Convention of Paris; interpretation of the latter provision.

ADVISORY OPINION.

Before: MM. ADATCI, *President*; GUERRERO, *Vice-President*;
Baron ROLIN-JAEQUEMYS, Count ROSTWOROWSKI,
MM. FROMAGEOT, ALTAMIRA, ANZILOTTI, URRUTIA,
Sir CECIL HURST, M. SCHÜCKING, Jhr. van EYSINGA,
MM. WANG, *Judges*; BRUNS, *Judge ad hoc*.

THE COURT, composed as above, gives the following opinion:

On May 22nd, 1931, the Council of the League of Nations adopted the following Resolution :

“The Council,

Having regard to the letter of the High Commissioner of the League of Nations in Danzig, dated March 31st, 1931,

Having regard to the contentions set out in the memorandum of the Polish Government, annexed to the said letter,

Having regard to the contentions set out in the memorandum of the Danzig Government, also annexed to the above-mentioned letter,

Requests the Permanent Court of International Justice to give an advisory opinion, in conformity with Article 14 of the Covenant, on the two following questions :

‘(1) Is the question of the treatment of Polish nationals and other persons of Polish origin or speech in the territory of the Free City of Danzig to be decided solely by reference to Article 104 (5) of the Treaty of Versailles and Article 33, paragraph 1, of the Convention of Paris (and any other treaty provisions in force which may be applicable), or also by reference to the Constitution of the Free City ; and is the Polish Government accordingly entitled to submit to the organs of the League of Nations, by the method provided for in Article 103 of the Treaty of Versailles and Article 39 of the Convention of Paris, disputes concerning the application to the above-mentioned persons of the provisions of the Danzig Constitution and other laws of Danzig ?

(2) What is the exact interpretation of Article 104 (5) of the Treaty of Versailles and of Article 33, paragraph 1, of the Convention of Paris, and, if the reply to question (1) is in the affirmative, of the relevant provisions of the Constitution of the Free City ?’

The Council requests the Governments of Poland and Danzig to hold themselves at the disposal of the Court with a view to supplying it with all relevant documents and explanations.

The Secretary-General is authorized to submit this request to the Court, to give the requisite assistance in the examination of the question, and, if necessary, to make arrangements to be represented before the Court.”

In pursuance of this Resolution, the Secretary-General, on May 23rd, 1931, transmitted to the Court a request for an advisory opinion in the following terms:

"The Secretary-General of the League of Nations, in pursuance of the Council Resolution of May 22nd, 1931, and in virtue of the authorization given by the Council,

has the honour to submit to the Permanent Court of International Justice an application requesting the Court, in accordance with Article 14 of the Covenant, to give an advisory opinion to the Council on the questions which are referred to the Court by the Resolution of May 22nd, 1931.

The Secretary-General will be prepared to furnish any assistance which the Court may require in the examination of this matter, and will, if necessary, arrange to be represented before the Court."

The request was registered in the records of the Registry of the Court on May 28th, 1931. To the request were appended:

(1) a copy of the report to the Council on the question of the treatment of Polish nationals and other persons of Polish origin or speech in Danzig, presented by the British representative, by which the above-mentioned Resolution was submitted to the Council;

(2) a copy of a document circulated to the Council which contains: (a) the letter from the High Commissioner to the Secretary-General, dated March 31st, 1931; (b) the memorandum from the Polish Government, and (c) the memorandum from the Government of the Free City of Danzig, to which reference is made in the above-mentioned Resolution.

Under cover of a letter dated May 30th, 1931, the Secretary-General also sent to the Registrar a copy of the minutes of the meeting of the Council on May 22nd, 1931, when the Resolution above mentioned was discussed and adopted.

In conformity with Article 73, paragraph 1, sub-paragraph 1, of the Rules of Court, the request was communicated to Members of the League of Nations and to States entitled to appear before the Court. Furthermore, the Registrar, by means of a special and direct communication, informed the Governments of the Polish Republic and of the Free City of Danzig which were regarded by the Court as likely, in accord-

ance with Article 73, paragraph 1, sub-paragraph 2, of the Rules, to be able to furnish information on the question submitted to the Court for an advisory opinion, that the Court was prepared to receive from them written statements and, if they so desired, to hear oral arguments presented at a public hearing to be held for the purpose; the representatives of the interested Governments had already been consulted as to the length of the time-limits within which these Governments would be ready to file any written statements they might desire to submit.

In these circumstances, and having due regard to the suggestions made by the above-mentioned representatives and likewise to the fact that the question submitted to the Court had, either in the course of the proceedings before the High Commissioner, or in those before the Council, formed the subject of three written statements submitted by each of the Governments concerned¹, the President of the Court, by an Order made on June 1st, 1931, fixed September 17th, 1931, as the date by which a written statement was to be filed with the Registry by each of the two Governments, and October 15th, 1931, as the date by which they were to file a second statement "in case the Court or its President should order or authorize its submission, after September 17th, 1931". At the request of the Agent for the Government of the Free City and with the consent of the Agent for the Polish Government, these times were subsequently extended to October 1st and 29th, 1931, respectively. At the expiration of the first of these time-limits, as thus extended, Memorials had been filed on behalf of the Danzig and Polish Governments. On October 5th, 1931, the Agent for the Danzig Government requested the Court to authorize the filing of a second written statement; the Court having granted this authorization, a "reply" by Danzig was filed within the second time-limit fixed. The Agent for the Polish Government did not present a second written statement.

Lastly, on June 4th, 1931, the Registrar addressed to all States parties to the Treaty of Versailles of June 28th, 1919, a communication drawing their attention to the rights con-

¹ See list in Annex.

ferred upon them, in connection with the question before the Court, by Article 73, paragraph 1, sub-paragraph 3, of the Rules of Court.

In the course of public sittings held on December 7th, 8th, 9th, 10th, 11th, 14th and 15th, 1931, the Court heard the oral arguments presented by Professor Erich Kaufmann, Agent, on behalf of the Danzig Government, and by MM. Moderów, Agent, and Ch. de Visscher, Counsel, on behalf of the Polish Government.

In addition to the statements and observations of the interested Governments and the documents transmitted by the Secretary-General, as mentioned above, the Court has had before it a series of documents submitted either during the written proceedings or at the hearing, by the representatives of the two Governments¹.

The Court held that the question submitted to it for an advisory opinion related to an existing dispute between the Free City of Danzig and Poland, within the meaning of Article 71, paragraph 2, of the Rules of Court. As one only of these States, namely, Poland, had on the Bench a judge of its nationality, the Senate of the Free City of Danzig availed itself of its right, under Article 71 of the Rules of Court, to choose a judge *ad hoc* to sit in the case.

The submission of the case being in all respect regular, it is in these circumstances that the Court is now called upon to give its opinion.

* * *

The immediate origin of the questions on which the Court is called upon to give its opinion is to be found in a matter recently submitted for decision by Poland to the High Commissioner of the League of Nations at Danzig.

The diplomatic representative of the Polish Republic at Danzig had written to the High Commissioner on September 30th, 1930, requesting his decision, in accordance with Article 39 of the Paris Convention, "in regard to the unfavourable treatment of Polish nationals and other persons of Polish

¹ See list in Annex.

origin or speech in the territory of the Free City of Danzig". At the same time the diplomatic representative has submitted a series of conclusions, together with an explanatory memorandum, relating to the following points: public and private education; recognition of school certificates; freedom to use the Polish language; nationality; paid labour; acquisition of landed property; allotment of dwellings; police registration; liberty of domicile and establishment.

In his explanatory memorandum, the diplomatic representative had declared that it had become clear that "the position of the Polish population", as established by Article 104 of the Treaty of Versailles and Article 33 of the Convention of Paris, was in danger. The Polish Government had therefore felt obliged to solicit a decision by the High Commissioner, and to intervene, "not only on legal grounds but also for humanitarian reasons, in order to protect the interests of the Polish nationals and the Polish population residing in the territory of the Free City".

The Polish request of September 30th, 1930, gave rise to written proceedings dealing in detail with the points in dispute. On December 3rd, 1930, the Free City of Danzig submitted a "reply" to the Polish allegations and claims; on January 29th Poland replied, Danzig making a rejoinder on March 25th and May 5th, 1931, in a "second reply".

Meanwhile, the High Commissioner had written to the Parties, under date March 11th, 1931, inviting them to furnish him with memorials, setting forth the legal arguments on which they respectively relied in their interpretations of Article 104 : 5 of the Treaty of Versailles and Article 33 of the Convention of Paris. These memorials were sent to him on March 26th, 1931; and on March 31st following he wrote to the Secretary-General of the League of Nations, transmitting them and adding that "it would serve no useful purpose to examine the numerous concrete points submitted to the High Commissioner for decision in the request of the

Polish Government of September 30th before the legal points involved have been settled beyond dispute". Accordingly, with the agreement of the Parties, he drew the Council's attention to "the eminent desirability of asking the Permanent Court of International Justice to give forthwith an advisory opinion on the legal points on which the two Governments differ".

The High Commissioner's suggestion came before the Council on May 22nd, 1931. Mr. Henderson, the Rapporteur, endorsed the opinion expressed by the High Commissioner, and submitted to the Council, by which it was adopted, the resolution appearing at the beginning of the present Opinion.

In his report Mr. Henderson recapitulated the Polish arguments and cited the submissions of the Polish memorandum of March 26th, 1931, namely :

"1. The Free City of Danzig is prohibited by paragraph 5 of Article 104 of the Treaty of Versailles, by the second clause of paragraph 1 of Article 33 of the Treaty of Paris, and by the Constitution of the Free City, from making any discrimination in administration and legislation between the German majority, on the one hand, and Danzig citizens of Polish origin, or Polish citizens or other persons of Polish origin and speech, on the other hand. This means in particular that :

(a) Polish citizens in Danzig, in accordance with the Danzig Constitution, enjoy full and entire equality of rights in every domain of public life and of private law relations, and, in particular, by Article 4 of the said Constitution, their national development and, above all, the use of the mother-tongue in education, in internal administration and in the administration of justice are guaranteed to them ;

(b) Polish citizens enjoy full and entire equality of rights except political rights. In particular, the Free City of Danzig is bound to guarantee to them their free national development and especially the use of the mother-tongue in education, internal administration and the administration of justice, on the same footing as Danzig citizens ;

(c) All other persons of Polish origin and speech enjoy the same rights as Polish citizens.

2. It is for Poland to submit to the organs of the League of Nations, by the method provided for in Article 103 of the Treaty of Versailles and Article 39 of the Treaty of Paris, any dispute arising out of the execution of paragraph 5 of Article 104 of the Treaty of Versailles and Article 33 of the Treaty of Paris; in particular, Poland has the right to submit to the organs of the League of Nations disputes concerning the observance of the Danzig Constitution and the application of the laws of Danzig in regard to Poles who are Danzig citizens."

The Danzig arguments were summarized by the Rapporteur in the following terms:

"Article 33 of the Paris Treaty of November 9th, 1920, forms the sole legal foundation for the settlement of the minorities problem between the Free City of Danzig and the Republic of Poland.

Article 33 of that Treaty, in accordance with the spirit and letter of the Treaty of Versailles, fulfils and takes the place of Article 104, paragraph 5, of the Treaty of Versailles.

Under Article 33, paragraph 1, of the Paris Treaty, Danzig is bound to apply to the Polish minorities treatment which does not involve any discrimination as compared with the other minorities, so that the members of the Polish minority possessing Danzig nationality must be treated in accordance with provisions similar to those which Poland applies in Polish territory in execution of Articles 7, 8 and 9 of the Polish Minorities Treaty, while the members of the Polish minority not in possession of Danzig nationality must be treated according to provisions similar to those which Poland applies in Polish territory in execution of Article 2 of the Polish Minorities Treaty."

* * *

Before entering upon an examination of the questions on which the opinion of the Court is requested, it is desirable to recapitulate the main facts regarding the origin and the evolution of the Constitution of the Free City of Danzig and of Article 33 of the Convention concluded between Poland and Danzig on November 9th, 1920, commonly known as the Convention of Paris, for, in certain of its aspects, these facts have a direct bearing on the present case.

*

Article 103 of the Treaty of Versailles lays down that :

“A Constitution for the Free City of Danzig shall be drawn up by the duly appointed representatives of the Free City in agreement with a High Commissioner to be appointed by the League of Nations. This Constitution shall be placed under the guarantee of the League of Nations.”

On February 13th, 1920, the Council of the League of Nations approved a memorandum concerning the duties of the High Commissioner of the League at Danzig, whom it had just appointed. This memorandum provided that the High Commissioner should submit the Constitution of the Free City to the Council before it was formally approved.

The Constitution was drawn up by a Constituent Assembly, which adopted it on August 11th, 1920. It was submitted to the Council, in draft form, on August 24th through the High Commissioner. The Council did not however make any detailed examination of it till November 1920. After considering a report submitted by Viscount Ishii dealing in the first place with the definition of the “exact meaning” of the terms ‘protection’ by the League and ‘guarantee’ of the Constitution by the League”, which are employed in Article 103 of the Treaty of Versailles, the Council decided, on November 17th, *inter alia*, that the Constitution of the Free City should be placed under the guarantee of the League of Nations, “with effect from the time of its establishment by the Principal Allied and Associated Powers”, but that the “Constituent Assembly” of Danzig should be invited to submit, within three weeks, the final text of the Constitution, revised in accordance with various changes indicated by the Council.

It should in this connection be observed that the “Decision constituting the City of Danzig as a Free City”, which was signed on behalf of the Principal Powers on October 27th, and on behalf of Danzig on November 9th, 1920, provides that it “shall take effect as from November 15th, 1920”; and on that date the High Commissioner’s deputy formally proclaimed the establishment of Danzig and the adjacent territory as a “Free City”.

On January 12th, 1922, the Council authorized the High Commissioner to approve the Constitution as soon as certain specified conditions had been complied with by the Free City. Accordingly, by a letter dated May 11th, 1922, the High Commissioner declared that he approved the Constitution, as successively amended at the invitation of the Council of the League of Nations. On May 13th, 1922, the Council approved a report from the High Commissioner recording this event, and took note, at the same time, of his decision accepting the Constitution of the Free City of Danzig in conformity with Article 103 of the Treaty of Versailles.

*

Article 104 of the Treaty of Versailles provided that :

"The Principal Allied and Associated Powers undertake to negotiate a treaty between the Polish Government and the Free City of Danzig, which shall come into force at the same time as the establishment of the said Free City, with the following objects :

.

5° to provide against any discrimination within the Free City of Danzig to the detriment of citizens of Poland and other persons of Polish origin or speech."

The work of drawing up the convention provided for in Article 104 of the Treaty of Versailles had been initiated on May 7th, 1920, when the Conference of Ambassadors adopted a resolution to the effect that it was desirable that the said convention should be concluded as early as possible, and inviting Poland and Danzig to continue and to complete in a short time the necessary preparatory discussions under the chairmanship of the representative of the Allies. On July 11th, 1920, the Supreme Council had approved a "Decision concerning Danzig" to the same effect.

To this end, preliminary drafts had been prepared both by Poland and Danzig, and had been the subject of an initial exchange of views at Paris in September 1920, after which a second preliminary draft, dated September 20th, had been submitted by the Polish representatives. The first Polish draft

contained a Chapter II (nine articles), dealing with "Public Rights", and a Chapter III (six articles), dealing with "Public Education"; these chapters regulated, in detail, both the situation of minorities in the Free City and the rights of Polish nationals at Danzig. The Danzig preliminary draft contained an Article VIII (fourteen paragraphs), dealing with the "Rights of nationals of both the contracting Parties" (*Rechte der beiderseitigen Staatsangehörigen*); on the other hand, with regard to "the minority rights of Danzig nationals of Polish origin or speech", the article referred to the terms of the Constitution. The second Polish preliminary draft presented the same features as the first, in regard to the point in question, viz.: the detailed regulation (two chapters and eighteen articles) of the rights of minorities, and in particular of Polish nationals at Danzig.

The communications between the Conference of Ambassadors and the Polish delegation] have not been submitted to the Court, but it is an established fact that on October 16th, 1920, the Conference transmitted to the Danzig delegation the text of a "Draft Convention between Poland and the Free City of Danzig provided for in Article 104' of the Treaty of Versailles", with a request for that delegation's observations upon it. In this text, the matters dealt with in the detailed provisions of the preliminary drafts concerning the rights of foreigners were settled by an Article 30, worded as follows:

"The Free City of Danzig undertakes to apply to racial, religious and linguistic minorities provisions identical with those which are applied by Poland on Polish territory, in execution of Chapter I of the Treaty concluded at Versailles on June 28th, 1919, between Poland and the Principal Allied and Associated Powers, with a view, in particular, to ensuring the application of the provisions laid down in Article 104, paragraph 5, of the Treaty of Versailles with Germany¹."

The Danzig observations (dated October 18th) upon the draft of October 16th, 1920, were not specially concerned with Article 30 of the draft.

On October 20th, the Conference of Ambassadors sent to the Danzig delegation a revised text of the draft convention, in which Article 30 reappeared, without any change; this text of the convention was described as "definitive", and the covering

¹ Translation communicated by the Danzig Government.

letter added that "the Conference could not agree to make any further alterations in this document"; the convention must be signed on October 23rd following. It should be observed that a note "concerning the draft Constitution from the point of view of the Treaty of Versailles" accompanying the letter of October 20th, 1920, under cover of which the Conference transmitted to the Council of the League of Nations, at the latter's request, the "definitive text" of the convention for consideration during its session at Brussels, contained the following passage, the import of which is examined below :

".... It is well known that the Treaty [of Versailles] provides for the conclusion of a convention between Danzig and Poland which is to ensure for Poland in regard to Danzig certain guarantees regarding treatment (equality of treatment)."

The Polish delegation refused to accept the draft of October 20th ; the Danzig delegation, on the other hand, had decided to sign it. In these circumstances, the two delegations were invited to undertake further negotiations ; the Danzig delegation however declined to do so, pointing out that, according to the covering letter of October 20th, the text of the draft bearing that date was definitive and could not be further altered. Thereupon the Conference of Ambassadors assured the Danzig delegation, in a letter dated October 28th, 1920, that the Conference of Ambassadors had never intended to call in question "the essential solutions" embodied in the draft treaty sent to the delegation under cover of its letter of October 20th, 1920.

As a result, some unofficial conversations took place. As appears from a letter written on November 5th, 1920, by the President of the Danzig delegation to the President of the Conference of Ambassadors, these negotiations resulted in some draft amendments to the original text. One of the proposed amendments, however, affected the former Article 30, which the Polish delegation desired to modify, so as to read as follows :

".... and to provide, in particular, against any discrimination in legislation or in the conduct of the administration to the detriment of nationals of Poland and other persons of Polish origin or speech¹".

¹ Translation communicated by the Secretariat of the League of Nations.

The Danzig delegation thereupon asked for confirmation of their view that this amendment did not *ipso facto* invest Polish nationals with political rights, such rights appertaining solely to nationals of the Free City. The required confirmation was given in a letter dated November 6th; whereupon the Convention was signed on November 9th, 1920.

Article 33 of the Convention, which corresponds to Article 30 of the drafts of October 16th and October 20th, is worded as follows:

"The Free City of Danzig undertakes to apply to racial, religious and linguistic minorities provisions similar to those which are applied by Poland on Polish territory in execution of Chapter I of the Treaty concluded at Versailles on June 28th, 1919, between Poland and the Principal Allied and Associated Powers, to provide, in particular, against any discrimination, in legislation or in the conduct of the administration, to the detriment of nationals of Poland and other persons of Polish origin or speech, in accordance with Article 104, paragraph 5, of the Treaty of Versailles.

The provisions of Articles 14 to 19 of the Treaty concluded at Versailles between the Principal Allied and Associated Powers and Poland on June 28th, 1919, as also the provisions of Article 89 of the Treaty of Versailles with Germany, shall equally apply to the Free City of Danzig."

It should be recalled that Viscount Ishii's report, which was presented to the Council of the League of Nations on November 17th, 1920, and has already been referred to, contains the following comment on the above article:

"According to Article 33, the Free City undertakes to give protection to minorities of race, religion and language, in accordance with the stipulations contained in the Treaty of June 28th, 1919, concluded between Poland and the Principal Allied and Associated Powers; these stipulations have already been placed under the guarantee of the League by a Resolution of the Council dated February 13th, 1920."

Viscount Ishii, after pointing out that the text submitted to the Council at Brussels, in October 1920, had since been somewhat modified, went on to state, in his report, that

"nevertheless the final text does not differ in any vital point, or in any point of interest to the League, from the draft report submitted to the Council at Brussels".

This was the draft containing the text of Article 30 quoted above.

Article 38 of the Convention of November 9th, 1920, between Poland and Danzig lays down that

"further agreements shall be concluded between Poland and the Free City on all questions not dealt with in the present Treaty".

In pursuance of this clause, an agreement between Poland and the Free City was concluded at Warsaw on October 24th, 1921. The first section (Art. 1 to 44) of that agreement, which was followed at a later date by a number of supplementary agreements, deals with "Polish and Danzig nationals" and regulates such questions as: conditions for naturalization at Danzig, frontier traffic, permission to engage in commerce and industry, acquisition and disposal of movable and immovable property. On the other hand, the "Final Provisions" include an article, No. 229, which deals with "Reservations arising out of Article 33 of the Convention" (of Paris), and lays down that:

"Whereas the Polish Republic, relying on the provisions of Article 104, point 5, of the Treaty of Peace, and Article 33, paragraph 1, of the Polish-Danzig Convention of November 9th, 1920, claims more extensive rights than those provided in the present Agreement, and whereas the Free City of Danzig does not acknowledge these rights, the Polish Republic expressly reserves these more extensive rights, particularly in regard to the extent of the minority rights of Polish nationals in the Free City of Danzig, and in regard to prohibition of residence¹."

The situation resulting from this article subsequently gave rise to a number of practical difficulties.

Thus, for example, in July 1923, the Council of the League of Nations was called on to consider a declaration by the Polish representative dealing, *inter alia*, with the interpretation of the clause provided for "in the Treaty of Versailles and

¹ Translation by the Registry.

later on in the Convention of Paris" to the effect that "no discrimination shall be made in the Free City to the detriment of Polish nationals and other persons of Polish origin or speech". The Council was content, in regard to this point, at its meeting on July 7th, 1923, to recommend that "Poland and Danzig should bring before the High Commissioner without delay any legitimate grievance which either may consider it has against the other", a recommendation which the Council took occasion, on March 13th, 1925, to confirm and emphasize.

In pursuance of the decisions adopted on July 7th, 1923, the High Commissioner transmitted to the Council, under cover of a letter dated August 31st, 1923, a "Declaration" setting forth the results of the negotiations which had taken place between the Parties under his chairmanship. One chapter of this declaration is devoted to Article 33 of the Convention of Paris. It contains the following passage:

"Both Parties state that the interpretation by each Party of Article 33 is so widely divergent that there appears to be no possibility of reconciling their different points of view on this fundamental question, which will therefore have to be answered by means other than an agreement between the two Governments. In the meantime, certain disputes arising out of this difference of opinion as to the meaning of the paragraph are in need of settlement as a provisional measure without prejudice to the final decision on the point at issue."

In his covering letter, transmitting the above declaration, the High Commissioner added, for his own part, that:

"The only question on which it has not been possible to arrive at an agreement is one of vital importance to both Parties. It is the question of the legal status of Polish citizens in the territory of the Free City, which is dealt with in paragraph 33 of the Treaty of Paris and the respective paragraph of the Treaty of Versailles.... The matter turns upon two different and perfectly *bona fide* interpretations of certain paragraphs in the Treaties, on which there will, I think, be required an opinion or a decision of some judicial authority."

The Resolution adopted by the Council, on September 1st, 1923, concerning the High Commissioner's report, does not,

however, mention the question of Article 33 of the Convention of Paris; and when, in 1924-1925, the Council had once more to consider a number of questions arising out of that article, it again refrained from giving any decision on the merits, and confined itself to adopting, on June 11th, 1925, a Resolution concerning the procedure before the High Commissioner. It is in these circumstances that the problem is now referred to the Court in order that the questions of principle involved may receive a solution.

* * *

The two questions submitted to the Court are as follows:

“(1) Is the question of the treatment of Polish nationals and other persons of Polish origin or speech in the territory of the Free City of Danzig to be decided solely by reference to Article 104 (5) of the Treaty of Versailles and Article 33, paragraph 1, of the Convention of Paris (and any other treaty provisions in force which may be applicable), or also by reference to the Constitution of the Free City; and is the Polish Government accordingly entitled to submit to the organs of the League of Nations, by the method provided for in Article 103 of the Treaty of Versailles and Article 39 of the Convention of Paris, disputes concerning the application to the above-mentioned persons of the provisions of the Danzig Constitution and other laws of Danzig?

(2) What is the exact interpretation of Article 104 (5) of the Treaty of Versailles and of Article 33, paragraph 1, of the Convention of Paris, and, if the reply to question (1) is in the affirmative, of the relevant provisions of the Constitution of the Free City?”

With regard to the first of these questions, the Court considers it necessary to determine at the outset the precise meaning of the question as submitted.

The question consists of two parts. The first part relates to the sources of law applicable to the question of the treatment of Polish nationals and other persons of Polish origin or speech in the territory of the Free City of Danzig; here the point is whether, besides the treaty stipulations mentioned in the question, the Constitution of the Free City is also applicable. The second part asks whether the Polish Government is entitled

to resort to the procedure provided for in Article 103 of the Treaty of Versailles and Article 39 of the Convention of Paris in disputes concerning the application to the above-mentioned persons of the provisions of the Danzig Constitution and other laws of Danzig. Are these two parts to be read together as one question, or do they constitute two separate and distinct questions? In other words, does the first part refer to the applicability of the Danzig Constitution as a general question, without reference to the right of the Polish Government to resort to the procedure laid down in Article 103 of the Treaty of Versailles and Article 39 of the Convention of Paris, or does it refer to the applicability of the Constitution solely from the point of view of the Polish Government's right to resort to such procedure in disputes concerning the application to Polish nationals and other persons of Polish origin or speech, of the provisions of the Danzig Constitution and other laws of Danzig?

So far as the Court is aware, no question of the right of invoking the Danzig Constitution by private individuals before Danzig tribunals or by the League of Nations as guarantor of the Constitution has been raised in proceedings before the High Commissioner or the Council. The terms of the dispute between Poland and Danzig leading to the present proceedings before the Court and the use of the word "accordingly" (*par conséquent*) in the text of the question point to the conclusion that the first part is asked in view of the consequence contained in the second part, so that they are logically connected with each other and are to be considered as one question. Moreover, the Council Resolution expressly refers to "two questions" on which the Council requests the Court to give an advisory opinion; and the second question says: "if the reply to question (1) is in the affirmative". Reading the question in this sense, the Court will proceed to examine the points raised by it.

The Constitution of the Free City presents certain peculiarities which are not to be found in the constitutions of other countries. By Article 103 of the Treaty of Versailles, the Constitution of the Free City was to be drawn up by the duly appointed representatives of the Free City in agreement with a High Commissioner to be appointed by the League of Nations, and was to be placed under the guarantee of the League. It was in pursuance of this article that the Constitution of the Free City was drawn up, and by the Council Resolution of November 17th, 1920, it was placed under the guarantee of the League. According to Viscount Ishii's report, which was adopted by the Council on November 17th, 1920, the guarantee of the League implies :

"(1) that this Constitution will have to obtain the approval of the League of Nations ;

(2) that the Constitution can only be changed with the permission of the League of Nations ; and

(3) that the constitutional life of the Free City of Danzig must always be in accordance with the terms of this Constitution".

The League, as guarantor of the Constitution, is therefore concerned not merely with the text of the Constitution, but also with the proper application of it. It was at the request of the League that an article was inserted in the definitive text of the Constitution as Article 42, reading :

"The Senate of the Free City shall furnish to the League of Nations at any time upon the request of the latter, official information regarding the public affairs of the Free City."

The object of this provision is obvious. It is to enable the League to exercise its rights and fulfil its duties concerning *inter alia* the actual application of the Constitution.

From what has been said above, it follows that the League of Nations, as guarantor of the Constitution of the Free City, has the right—which, in practice, it exercises through the Council—as well as the duty, to intervene in the event of an erroneous application by Danzig of its Constitution.

The question submitted to the Court does not, however, envisage the right of the Polish Government to have recourse to the League, in the latter's capacity as guarantor of the Danzig Constitution. It relates solely to the right of the Polish Government acting in its own name, to submit to the organs of the League of Nations, by the method provided for in Article 103 of the Treaty of Versailles and Article 39 of the Convention of Paris, disputes concerning the application of the provisions of the Constitution and other laws of Danzig to Polish nationals and other persons of Polish origin or speech—in other words, to resort to the compulsory arbitration of those organs.

As the scope of the two above-mentioned articles is not identical, they must be examined separately.

The relevant passage of Article 103 of the Treaty of Versailles is paragraph 2, which provides as follows :

“The High Commissioner will also be entrusted with the duty of dealing in the first instance with all differences arising between Poland and the Free City of Danzig in regard to this Treaty, or any arrangements or agreements made thereunder.”

This paragraph makes no mention of the Constitution of the Free City as a subject within the compulsory arbitral jurisdiction of the High Commissioner. The fact that the Constitution was drawn up with the collaboration of the League and has been placed under the guarantee of the League is, of course, of great importance in all questions affecting the relations between Danzig and the League, but this fact cannot, in the opinion of the Court, confer on the Constitution, within the meaning of Article 103, paragraph 2, of the Treaty of Versailles, the legal character of an arrangement or agreement “made thereunder”.

Article 39 of the Convention of Paris is wider in character. It provides as follows :

“Any differences arising between Poland and the Free City of Danzig in regard to the present Treaty or to any subsequent agreements, arrangements or conventions, or to any matter affecting the relations between Poland and the Free City, shall be submitted by one or the other Party to the decision of the High Commissioner, who

shall, if he deem it necessary, refer the matter to the Council of the League of Nations."

According to this article, and quite apart from questions relating either to the Convention itself or to "subsequent agreements, arrangements or conventions", two conditions must be fulfilled in order to justify either Party to the Convention in submitting disputes to the High Commissioner, namely, (1) the dispute must be a difference "arising between Poland and the Free City", and (2) it must relate to a matter "affecting the relations between Poland and the Free City". The point on which the Court is asked to give its opinion amounts therefore to this: does a dispute concerning the application of the Danzig Constitution and other laws of Danzig to Polish nationals and other persons of Polish origin or speech, fulfil the two conditions mentioned above?

The Polish Government contends that all constitutional and treaty restrictions upon the independence of the Free City are organic limitations which are so intimately connected with one another that they reveal a "unity of purpose"; that the guarantee of the Constitution by the League, being subordinated to the respect of the treaty rights of Poland, constitutes an inseparable element of the legal status of Danzig; that this legal status is *sui generis*; and that consequently the ordinary legal distinction between matters of a domestic and of an international character does not hold good in the present case. According to the Polish Memorial, "these questions cannot be answered purely and simply by reference to the prevailing legal conceptions governing the interrelationship between the municipal legal system and the international legal system¹"; apart from this, the Polish Government in no way disputes the principle that in general the application of a constitution is essentially a matter of domestic concern.

The Court is unable to accept the contention of the Polish Government. In its opinion, the fact that the legal status of Danzig is *sui generis* does not authorize it to depart from the ordinary rules governing relations between States and to establish new rules for the relations between Poland and Danzig. The general principles of international law apply to

¹ Translation by the Registry.

Danzig subject, however, to the treaty provisions binding upon the Free City and to decisions taken by the organs of the League under these provisions. The peculiar character of the Danzig Constitution, as has been said above, affects only the relations between Danzig and the League. A violation or an erroneous application of the Constitution by Danzig is, therefore, so far as international relations are concerned, a matter solely between the League, as guarantor, and Danzig. With regard to Poland, the Danzig Constitution, despite its peculiarities, is and remains the Constitution of a foreign State. Any grievance which Poland may allege against the Free City arising out of the application by the latter of its Constitution as such cannot therefore give rise between Poland and the Free City of Danzig to differences in regard to a matter affecting the relations between Poland and the Free City within the meaning of Article 39 of the Convention of Paris; differences submitted to the High Commissioner under these conditions cannot therefore be entertained by him.

It should however be observed that, while on the one hand, according to generally accepted principles, a State cannot rely, as against another State, on the provisions of the latter's Constitution, but only on international law and international obligations duly accepted, on the other hand and conversely, a State cannot adduce as against another State its own Constitution with a view to evading obligations incumbent upon it under international law or treaties in force. Applying these principles to the present case, it results that the question of the treatment of Polish nationals or other persons of Polish origin or speech must be settled exclusively on the bases of the rules of international law and the treaty provisions in force between Poland and Danzig.

The application of the Danzig Constitution may however result in the violation of an international obligation incumbent on Danzig towards Poland, whether under treaty stipulations or under general international law, as for instance in the case of a denial of justice in the generally accepted sense of that term in international law. On this point, the Court refers to its Advisory Opinion No. 15; in this Opinion—which deals

with the jurisdiction of the Danzig Courts in regard to pecuniary claims against the Polish Administration of Danzig railway officials who have passed into the Polish service—the Court, whilst upholding this jurisdiction, adds that this conclusion does not affect the right conferred on Poland by Article 39 of the Convention of Paris to resort to the international procedure provided for in that article, if, for instance, a decision of the Danzig Courts should conflict, either with the general principles of international law or with the rules governing the relations between Poland and Danzig. However, in cases of such a nature, it is not the Constitution and other laws, as such, but the international obligation that gives rise to the responsibility of the Free City. This is in conformity with the general principle of the international responsibility of States and with the decision given by the Court in the case concerning certain German interests in Polish Upper Silesia (Judgment No. 7) and is, moreover, admitted by the Government of the Free City in its written statement submitted to the Court. Should such a case arise, Poland would undoubtedly be entitled to submit it to the organs of the League under Article 103 of the Treaty of Versailles and Article 39 of the Convention of Paris.

The question put to the Court relates also to the application of “other laws of Danzig”. As, in the opinion of the Court, the peculiar characteristics of the Danzig Constitution do not bring it within the domain of the international relations between Danzig and Poland, it follows *a fortiori* that the other laws of Danzig are, similarly, matters of domestic concern, and that questions relating to their application cannot be submitted to the organs of the League by the compulsory arbitral procedure mentioned above.

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The Court would point out that the foregoing must not be taken to mean that it has sought to give a complete interpretation of Article 39 of the Convention of Paris. The Court has not lost sight of the Council Resolution of June 11th, 1925, with reference to procedure before the High Commissioner, and has only dealt with the question in so far as is necessary for the purposes of the present case.

* * *

The Court will now pass to the second question, which reads :

“(2) What is the exact interpretation of Article 104 (5) of the Treaty of Versailles and of Article 33, paragraph 1, of the Convention of Paris, and, if the reply to question (1) is in the affirmative, of the relevant provisions of the Constitution of the Free City?”

First, as to the interpretation of Article 104:5 of the Treaty of Versailles. This article reads as follows :

“The Principal Allied and Associated Powers undertake to negotiate a treaty between the Polish Government and the Free City of Danzig, which shall come into force at the same time as the establishment of the said Free City, with the following objects :

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(5) to provide against any discrimination within the Free City to the detriment of citizens of Poland and other persons of Polish origin or speech.”

Article 104 of the Treaty of Versailles contains a mandate given by the signatories of the Treaty and accepted by the Principal Allied and Associated Powers to negotiate a treaty between Poland and Danzig with certain specified objects, which treaty was to come into force at the same time as the establishment of the Free City. The objects, of which one is set out in paragraph (5), were expressed in the form of certain general principles, the precise scope and mode of application of which were to be defined by the terms of the treaty to be negotiated. This appears more clearly from the French text of the article.

In this connection, the following passage from the Resolution of the Conference of Ambassadors of May 5th, 1920, is worth quoting :

“The Conference of Ambassadors, firmly resolved to ensure the strict execution of the stipulations of the Treaty of Versailles relative to Danzig by guaranteeing

to the population of the Free City as well as to the Polish Government the free exercise of the rights conferred upon them by the Treaty, and firmly resolved also not to tolerate any action in any quarter calculated to disturb the operation of the system of which the main lines have been settled by Articles 102 to 107 (inclusive) of the Peace Treaty declares that the convention referred to in Article 104 should be concluded as soon as possible¹."

The Treaty of Versailles therefore merely indicates the "main lines" of the régime of the Free City. Moreover, the language used in the Resolution above quoted admits of the conclusion that, in the opinion of the Conference of Ambassadors, the advantages guaranteed to Poland by Article 104 of the Treaty of Versailles were to be secured to her by the future convention to be concluded between Poland and Danzig and that the guarantee became effective between Poland and Danzig only in virtue of the latter convention.

The object of Article 104, paragraph (5), is to provide against any discrimination to the detriment of citizens of Poland and other persons of Polish origin or speech. The first point to be considered is the meaning of the expression: "other persons of Polish origin or speech". It has been interpreted by both Governments concerned to include Danzig citizens as well as citizens of other States, provided they are of Polish origin or speech. The Court does not therefore consider it necessary to go further into this question, which henceforth is of theoretical interest only, and it adopts the view that the expression covers all persons of Polish origin or speech (other than Polish citizens) regardless of their nationality.

It will be observed that the group of persons which the signatories of the Treaty of Versailles had in mind are those who possess certain attributes, namely, Polish citizenship, Polish origin, or Polish speech.

The prohibition against discrimination can best be understood in the light of the circumstances which led to the creation of Danzig as a Free City. The separation of Danzig from Germany was contrary to the wishes of the German people.

¹ Translation provided by the Danzig Government.

Almost the whole of the population of that city was German, and the Peace Conference, in order to assure to Poland free and secure access to the sea, decided to make Danzig a Free City without incorporating it in Poland. In this respect, some apprehension might be entertained lest the Polish people in Danzig would be exposed to discriminatory measures on the part of the Free City for no other reason than that they were Poles. An unsympathetic or even hostile attitude in a community towards a group of persons merely because of their possessing a particular attribute, e.g. nationality, origin, race or religion, is not without precedent. It is natural to suppose that it was with a view to preventing any such discriminatory measures that the authors of the Treaty of Versailles thought it desirable to prescribe as one of the objects of the treaty between Poland and Danzig the terms of which were to be negotiated by the Principal Allied and Associated Powers, that a clause prohibiting such discriminatory measures should figure therein. It is precisely because of their Polish character that discrimination against Polish nationals and other persons of Polish origin or speech is prohibited at Danzig.

On the other hand, the injunction "to provide against any discrimination to the detriment of" these persons is of general application, in so far as such discrimination is made on account of Polish citizenship, origin or speech.

It should be remarked in this connection that the prohibition against discrimination, in order to be effective, must ensure the absence of discrimination in fact as well as in law. A measure which in terms is of general application, but in fact is directed against Polish nationals and other persons of Polish origin or speech, constitutes a violation of the prohibition. A similar view has already been expressed by the Court in its Advisory Opinion No. 6 relating to German settlers in Poland. Whether a measure is or is not in fact directed against these persons is a question to be decided on the merits of each particular case. No hard and fast rule can be laid down.

The Polish Government contends that the stipulation in question prohibits any discrimination to the detriment of Polish citizens and other persons of Polish origin or speech as compared with Danzig citizens of German origin; in other words, that the former are entitled to national treatment. The Polish Government, however, in its interpretation, makes an express exception with regard to political rights (the right to vote and to be elected) and the exercise of public functions "which would be the expression of the attributes of the territorial power of the Free City". Moreover, according to the submissions in the Polish memorial of March 26th, 1931, reproduced above, and which have not been withdrawn, the Polish Government contends that Polish citizens and other persons of Polish origin or speech are entitled to the same treatment as Danzig citizens of Polish origin in so far as concerns "their free national development" and especially "the use of the mother-tongue in education, internal administration and the administration of justice". Here the comparison is not with Danzig citizens belonging to the German majority, but with Danzig citizens belonging to the Polish minority.

With regard to this interpretation, the following observations may be made:

In the first place, the text does not say between whom no discrimination is to be made. The Polish argument makes a very important addition, namely, a standard of comparison; this addition finds no support in the text.

In the second place, the two exceptions suggested by the Polish Government not only find no support in the text, but are directly contrary to the very wide terms of the prohibition which says: "to provide against any discrimination".

The Polish interpretation would result in granting national and, in certain respects, also minority treatment. In the Court's opinion, however, the object of the prohibition is to prevent any unfavourable treatment, and not to grant a special régime of privileged treatment.

In short, the Court is of the opinion that the contents of Article 104 : 5 are of a purely negative character in that they are confined to a prohibition of any discrimination ; it is for this reason unable to read into them any standard of comparison.

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It follows from the above considerations that the legal effect of Article 104 : 5 of the Treaty of Versailles was simply to oblige the Principal Allied and Associated Powers to insert in the convention, the terms of which they undertook to negotiate, provisions which would prevent in the Free City any discrimination of the kind indicated above.

It has, however, been contended that, although Danzig is not a signatory of the Treaty of Versailles, yet by its acceptance, on November 9th, 1920, of the above quoted decision of the Principal Allied and Associated Powers of October 27th, 1920, establishing the Free City, Article 104 : 5 of the Treaty of Versailles becomes binding on Danzig and contains therefore rules of law which are applicable as between Poland and Danzig.

The Court has duly considered from this point of view the terms of this decision and its acceptance by the Free City. Having satisfied itself that these texts are in this respect capable of different constructions, the Court simply observes that no precise conclusion in either sense can be deduced from them.

It is certain, on the other hand, that the Free City, having accepted the convention which the Principal Allied and Associated Powers had negotiated in pursuance of the terms of Article 104 of the Treaty of Versailles, thereby in a sense accepted that article. This acceptance, however, is merely the recognition of the mandate contained in the article of which the Convention is the application. The acceptance of Article 104 by the Free City cannot bestow upon the provisions of that article a meaning different from that which they bear in the relations between signatories to the Treaty. Moreover, the mandate is enforceable in respect of the Free City not only as a mandate conferred on the Principal Allied

and Associated Powers, but also because it indicates the objects to be attained by the Danzig-Polish Convention.

The question whether paragraph 5 of Article 104, by reason of its reproduction with slight additions in the second part of Article 33, paragraph 1, of the Convention of Paris, has become a rule of law binding on the Free City in relation to Poland, is an entirely different matter. In regard to this the Court observes that the contents of this provision have become binding on the Free City not because it is a rule in the Treaty of Versailles, but because it is a clause of the Convention of Paris.

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Before dealing with the exact interpretation of Article 33, paragraph 1, of this Convention, the Court will consider the precise relation of that article to Article 104: 5 of the Treaty of Versailles. It should be observed in this connection that, in the case concerning access to and anchorage in the port of Danzig of Polish war vessels (Opinion of Dec. 11th 1931), the Court did not express any opinion regarding the relations between Article 104 of the Treaty of Versailles and the Convention of Paris.

It has been suggested that the very wording of the questions submitted to the Court shows [that, in the opinion of the Council, Article 104: 5 of the Treaty of Versailles and Article 33 of the Convention of Paris have the same legal value, in view of the expressions "solely by reference to Article 104 (5) of the Treaty of Versailles and Article 33, paragraph 1, of the Convention of Paris", and "the exact interpretation of Article 104 (5) of the Treaty of Versailles and of Article 33, paragraph 1, of the Convention of Paris". In the opinion of the Court, however, no conclusion as to the legal value attributed by the Council to the two provisions in question can be drawn from these expressions. The dispute between Poland and Danzig before the High Commissioner as to whether or not the Danzig Constitution has an international character in relations between the two countries, sufficiently explains why the question put to the Court either contrasts these two treaty provisions with the Constitution or asks the Court to interpret them both. The [questions cannot therefore be considered as implying that these two stipulations have an equal legal value.

As between Danzig and Poland, the Convention of Paris is the instrument which is directly binding on Danzig; but in case of doubt as to the meaning of its provisions, recourse may be had to the Treaty of Versailles, not for the purpose of discarding the terms of the Convention, but with a view to elucidating their meaning. This view is consistent with the report of M. Quiñones de León, adopted by the Council on July 7th, 1923.

A difference of opinion had arisen between the High Commissioner and the Polish authorities regarding the relation between the Treaty of Versailles and the Convention of Paris. In a letter to the Secretary-General of the League of Nations dated June 4th, 1923, the High Commissioner expressed the view that, as regards the rights of the two States forming the subject of certain articles of the Treaty of Versailles, the Convention of Paris, and not the Treaty, was to be regarded as decisive. In his reply dated July 4th, 1923, the Polish representative argued that the Convention of November 9th, 1920, was not to be regarded as the decisive text, but that the meaning and terms of that Convention must be read in close conjunction with the Treaty of Versailles. "The Treaty constitutes the original legal basis; the Convention merely embodies clauses ensuing therefrom." The above-mentioned report of July 7th, 1923, decides between these opposing views. This report was officially communicated to the Governments of Poland and Danzig and to the High Commissioner of the League of Nations at Danzig. It is well to reproduce here the relevant passage:

"In the first place the question must be determined as to what is the exact relation between Article 104 of the Peace Treaty of Versailles and the Treaty concluded at Paris on November 9th, 1920. I am of opinion that the Treaty of November 9th, 1920, constitutes an entirely valid legal basis for the relations between Danzig and Poland, but that in the event of doubt as to the interpretation of any clause in the Treaty of November 9th recourse may be had, in order to dispel such doubt, to Article 104 of the Treaty of Versailles in virtue of which the Treaty of November 9th, 1920, was concluded. If I rightly understand

the position, the Polish representative appears to accept this standpoint, as a result of the exchange of views which took place at the meeting of the Council on the 4th instant."

The conclusion of the Convention does not in any way impair the legal value of Article 104 of the Treaty as an authentic expression of the mandate conferred on the Principal Allied and Associated Powers and of the objects of the Convention; from this point of view and to this extent, the article is enforceable in respect of the Free City.

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Having interpreted Article 104, paragraph 5, of the Treaty of Versailles and established the relation between it and Article 33 of the Convention of Paris, the Court will now proceed to examine paragraph 1 of that article.

The paragraph reads as follows:

"The Free City of Danzig undertakes to apply to racial, religious and linguistic minorities provisions similar to those which are applied by Poland on Polish territory in execution of Chapter I of the Treaty concluded at Versailles on June 28th, 1919, between Poland and the Principal Allied and Associated Powers, to provide, in particular, against any discrimination, in legislation or in the conduct of the administration, to the detriment of nationals of Poland and other persons of Polish origin or speech, in accordance with Article 104, paragraph 5, of the Treaty of Versailles."

This provision consists of two parts separated by a comma, the second part beginning with the words: *notamment à pourvoir* (English text: "to provide, in particular"). The principal points on which the Polish Government and the Government of the Free City hold divergent views are: (1) the relation between the two parts of the paragraph, and (2) the interpretation to be given to the second part. This text not being absolutely clear, it may be useful, in order to ascertain its precise meaning, to recall here somewhat in detail the various drafts which existed prior to the adoption of the text now in force.

When the Conference of Ambassadors began the work of drafting the Convention, it had before it, as has already been mentioned, three preliminary drafts, one presented by Danzig and two by Poland. The Danzig draft contained

detailed provisions relating to the rights of the nationals of the two contracting Parties. These provisions dealt with, *inter alia*, the question of reciprocal national treatment in regard to the acquisition of immovable property and the exercise of commercial and industrial activities of all kinds. In the first Polish draft, the chapters dealing with "public rights" and "public education" contained detailed provisions concerning the situation of the Polish minority and the rights of Polish nationals at Danzig on the basis of reciprocal national treatment. The second Polish draft contained provisions for national treatment of Polish nationals based on the principle of reciprocity.

The question of national treatment of Polish nationals, which had been raised in both the Danzig and the Polish drafts, doubtless received the consideration of the Conference of Ambassadors when it prepared its draft of the Convention; but instead of granting to Polish nationals at Danzig national treatment, whether with or without reciprocity, and whether in certain respects or in all respects, the Conference of Ambassadors dealt with the matter in Article 30 of its draft of October 16th, 1920, the first paragraph of which is as follows:

"Article 30.—The Free City of Danzig undertakes to apply to racial, religious and linguistic minorities provisions identical with those which are applied by Poland on Polish territory, in execution of Chapter I of the Treaty concluded at Versailles on June 28th, 1919, between Poland and the Principal Allied and Associated Powers, with a view, in particular, to ensure the application of the provisions laid down in Article 104, paragraph 5, of the Treaty of Versailles with Germany."

This article, which appeared without any change in the revised text of the Conference of Ambassadors under date of October 20th, corresponds to Article 33 of the Convention of Paris.

It should be noticed that the treatment accorded by Article 30 of the draft to Polish nationals and other persons of Polish origin or speech is not national treatment, but the régime of minority protection, and that the application of provisions

identical to those applied by Poland in Polish territory in accordance with Chapter I of the Polish Minorities Treaty of June 28th, 1919, constituted, in the opinion of the Conference of Ambassadors, the fulfilment of the mandate contained in Article 104:5 of the Treaty of Versailles.

However that may be, Article 33 of the Convention of Paris differs from Article 30 of the Conference draft in two respects, namely: (1) the word "identical" in the first part of the first paragraph of the article is changed to "similar", and (2) the second part: "with a view, in particular, to ensure the application of the provisions laid down in Article 104 (5) of the Treaty of Versailles" is changed to: "to provide, in particular, against any discrimination, in legislation or in the conduct of the administration, to the detriment of nationals of Poland and other persons of Polish origin or speech, in accordance with Article 104, paragraph 5, of the Treaty of Versailles". The substitution of the word "similar" for "identical" would not seem to be of importance for the purposes of the present Opinion. On the other hand, the change in the second part of the paragraph has given rise to different interpretations. In the text finally adopted, this second part reproduces the words of Article 104:5 of the Treaty of Versailles with the addition, in the body of the text, of the words: "in legislation or in the conduct of the administration"; this addition does not, however, materially affect the respective interpretations given by the two Governments concerned.

Although the Court, in giving its interpretation of the clause in question, is in no way bound by the views of the interested Governments, it will be well to indicate here what these views are.

The Government of the Free City maintains in substance that the second part of the paragraph should be read in the light of the first part, on the ground *inter alia* that the introduction of the second part by the word "notamment" logically renders the first part a principal clause, and the second a subsidiary clause, so that what is said in the latter must necessarily be implied and therefore included in the former. In a word, the whole paragraph, according to the Danzig interpretation, contains one undertaking only, the second part

merely confirming the undertaking assumed by Danzig in the first part. The Polish Government, on the other hand, contends that in the first paragraph of the article, the first part relates to the protection of minorities in general, whereas the second relates to the treatment of Polish nationals and other persons of Polish origin or speech in particular, a treatment which, according to the Polish interpretation, must be national treatment, subject to the two exceptions already noticed.

As already stated above, the solution adopted by the Conference of Ambassadors in its draft of October 20th, 1920, is the application to Polish nationals and other persons of Polish origin or speech of the general system of minority protection. This draft is described as a "final text", and the intention of the Conference of Ambassadors in regard thereto may be clearly seen from its letter to the Danzig delegation under date of October 28th, 1920:

"The Conference of Ambassadors never intended to call in question the essential solutions embodied in the draft treaty accompanying my letter to you of the 20th instant. The Conference thought and still thinks that a great deal would be gained if, without questioning any of these solutions, both Parties would agree upon any additions or modifications of detail which would tend either to clarify the meaning of certain provisions or simplify their application, and would eliminate any causes of hesitancy calculated to compromise agreement between them. It is however to be clearly understood that the text sent you on the 20th instant will not be modified in any way whatever except with the agreement of the two Parties who are to sign the treaty¹."

In this letter the Conference of Ambassadors declared in unmistakable terms that any subsequent additions or modifications introduced into the draft were to be confined to matters of detail, without calling in question any of the solutions already adopted. To interpret this text as implying national treatment, as the Polish Government contends, would, in the opinion of the Court, constitute a fundamental change

¹ Translation by the Registry.

contrary to the expressed intentions of the Conference of Ambassadors.

It is true that in the note of the Conference of Ambassadors annexed to its letter of October 20th, 1920, to the Secretary-General of the League of Nations, reference is made to "certain guarantees regarding treatment (equality of treatment)", but the words "equality of treatment" do not suggest any particular standard of comparison, so that no conclusion can be drawn that they mean national treatment. The fact should be emphasized that the note was referring to the draft of the Convention, of the same date, made by the Conference. In that draft, Article 30 indisputably provided for the application of the system of minorities protection. The inference, if any, which can be drawn from the use of the expression "equality of treatment" is that it means equality of treatment within the régime of the protection of minorities. The passages quoted above from Viscount Ishii's report of November 17th, 1920, afford further evidence to the same effect.

It has been suggested that the letter of the Danzig delegation to the Conference of Ambassadors, dated November 5th, 1920, and the latter's reply dated November 6th, support the Polish contention. The letter of the Danzig delegation was occasioned by the opinion expressed by the Polish section of the Constituent Assembly that Polish nationals in the Free City would also, *ipso facto*, enjoy political rights. The letter asked the Conference of Ambassadors to give an assurance that the new text of Article 30 could not admit of such an interpretation. The Conference replied that it had no difficulty in giving the assurances desired in this respect.

It has been argued that, in asking for this assurance, the Danzig delegation must have been assuming that national treatment was accorded by the text in question to Polish nationals and other persons of Polish origin or speech. In the Court's opinion, however, it is far more probable that the intention of the Danzig delegation, in making the enquiry in question, was to satisfy itself, by raising a specific aspect of the problem, that the text did not mean treatment equal

to that of Danzig nationals. Be that as it may, no argument *a contrario* can be deduced from the exchange of letters referred to.

The Polish Government contends that if Polish nationals and other persons of Polish origin or speech be not accorded national treatment under the second part of the text in question, they would have very few guarantees, and that such a situation would scarcely be consonant with the policy which led to the creation of the Free City.

In order to appreciate this objection, it is well to consider the sense in which the term "minorities" is used in the first part of Article 33, paragraph 1, of the Convention of Paris, and with that object to examine the provisions of Chapter I of the Polish Minorities Treaty of June 28th, 1919, particularly Articles 2, 7, 8, 9 and 12 of that Treaty.

By Article 2, Poland undertakes to assure full and complete protection of life and liberty to all inhabitants of Poland without distinction of birth, nationality, language, race or religion, and all inhabitants shall be entitled to the free exercise of any creed, religion or belief, whose practices are not inconsistent with public order or public morals.

Article 7 provides that all Polish nationals shall be equal before the law and shall enjoy the same civil and political rights.

Article 8 provides that Polish nationals who belong to racial, religious or linguistic minorities shall enjoy the same treatment in law and in fact as the other Polish nationals, and that they shall also have the right, among others, to use their own language.

Under Article 9 Poland is bound to provide in the public educational system, subject to certain conditions, adequate facilities for ensuring to the children of Polish nationals of other than Polish speech primary instruction through the medium of their own language.

Finally, Article 12 deals with the guarantee accorded by the League of Nations to the provisions of the Minorities Treaty: this guarantee is given "in so far as they" (the provisions of Articles 1 to 11) "affect persons belonging to racial, religious or linguistic minorities".

It will be seen that so far as the treatment of minorities is concerned, a distinction is drawn in the Treaty between minorities in the broad sense and minorities in the narrow sense. Article 2 refers to "all inhabitants", which also included minorities consisting of non-citizens of the State. This interpretation is in conformity with the practice of the Council and with the Court's Advisory Opinion No. 7 on the question concerning the acquisition of Polish nationality. The members of minorities who are not citizens of the State enjoy protection—guaranteed by the League of Nations—of life and liberty and the free exercise of their religion, while minorities in the narrow sense, that is, minorities the members of which are citizens of the State, enjoy—under the same guarantee—amongst other rights, equality of rights in civil and political matters, and in matters relating to primary instruction.

The Court is of opinion that in the first part of Article 33, paragraph 1, the term "minorities" is employed in its wide sense. This view was, moreover, shared by the two Governments concerned when the Warsaw Agreement of October 24th, 1921, was being [drawn] [up. Indeed, the formal reservation of the Polish Government, contained in Article 229 of that Agreement between Poland and Danzig, described the rights referred to in the clause in question as "the minority rights of Polish nationals in the Free City of Danzig".

The Court is unable to attach decisive importance to the opinion of the Polish Government according to which, because Polish nationals and other non-Danzig persons of Polish origin or speech in the Free City—like any other foreigners—only enjoy, under the general system of minority protection, rights in respect of life, liberty, and freedom of religion (which rights, in the opinion of the Polish Government, are entirely inadequate), the second part of the first paragraph of Article 33 must necessarily imply national treatment of the above-mentioned persons. Whether the granting to these persons, *de lege*

ferenda, of more extensive guarantees than those contained in Article 2 of the Polish Minorities Treaty might be considered, is a question going beyond the terms of the question submitted to the Court. The duty of the Court is to interpret the text as it stands, taking into consideration all the materials at the Court's disposal. Moreover, it must be observed that the distinction between citizens and non-citizens obtains to a greater or less extent in almost all countries, and is the standard adopted in all the Minorities treaties; it may not be entirely satisfactory from the point of view of a certain group or groups of foreigners, but it cannot be said to be unreasonable or unjust. It is to be observed in this connection that the Polish Minorities Treaty, like all other Minorities treaties, lays down the minimum guarantees which the State concerned is required to accord. The State is at liberty, either by means of domestic legislation or under a convention, to grant to minorities rights over and above those assured by the Minorities Treaty.

For the reasons set forth above, the Court has reached the conclusion that the Polish argument, according to which the second part of the first paragraph of Article 33 of the Convention of Paris provides national treatment for Polish nationals and other non-Danzig persons of Polish origin or speech in the Free City is not justified. Nor, on the other hand, can the Court accept the argument of the Danzig Government that the second part of the first paragraph of Article 33 adds nothing to the obligation arising from the first part of that paragraph, and does no more than confirm that obligation.

In the opinion of the Court, paragraph 1 of Article 33 of the Convention of Paris should be considered as containing two undertakings. According to the first part of the paragraph, the Free City undertakes to apply to minorities in her territory provisions similar to those applied by Poland in Polish territory in accordance with Chapter I of the Polish Minorities Treaty of June 28th, 1919; and the second part contains the undertaking to provide against any discrimination to the detriment of Polish nationals and other persons of Polish origin.

or speech on account of their Polish nationality, origin or speech, in accordance with Article 104:5 of the Treaty of Versailles.

The second undertaking assumed by Danzig, resulting from the incorporation of Article 104:5 of the Treaty of Versailles in the text of the Convention of Paris, may therefore be considered as a further guarantee that the Free City, whether applying provisions similar to those applied in Poland by the Polish Government to the minorities within its territory or granting more extensive or additional rights to these minorities or to foreigners not belonging to a minority, will allow of no differential treatment of Polish nationals and other persons of Polish origin or speech to their detriment on account of their Polish nationality, origin, or speech.

It has been suggested that if only discrimination on account of Polish nationality, origin or speech is prohibited, it would be possible for Danzig to exclude all Poles from its territory, provided that the exclusion applied equally to other foreigners, a consequence which would be contrary to the principle of Poland's free and secure access to the sea through the port of Danzig. The Court, without expressing any opinion on the question whether a State can exclude all foreigners from its territory, observes that it is unable to contemplate any such possibility with regard to the admission of Poles to the Free City's territory. The free and secure access to the sea which is guaranteed to Poland by several articles of the Convention of Paris, is irreconcilable with a system under which the territory of Danzig would be closed to Poles. Article 33 regulates the legal situation not only of Polish nationals but also of other persons of Polish origin or speech who are already, whether temporarily or permanently, within the territory of the Free City. The admission of foreigners to the territory of a State is a question which is not necessarily connected with the legal status of persons within its territory.

* * *

The Court, having answered question (1) in the negative, is not called upon to give an exact interpretation of the "relevant provisions of the Constitution of the Free City".

FOR THESE REASONS,

The Court,

by nine votes to four,

is of opinion :

(1) that the question of the treatment of Polish nationals and other persons of Polish origin or speech in the territory of the Free City of Danzig must, as between Poland and the Free City, be decided solely by reference to Article 104 : 5 of the Treaty of Versailles and Article 33, paragraph 1, of the Convention of Paris (as also, if necessary, by reference to other treaty provisions in force or rules of ordinary international law) and not by reference to the Constitution of the Free City, with the result that the Polish Government cannot submit to the organs of the League of Nations disputes concerning the application to the aforesaid persons of the Danzig Constitution and other laws of Danzig by the method provided for in Article 103 of the Treaty of Versailles and Article 39 of the Convention of Paris except in the case of disputes concerning the violation, as a result of such application, of an international obligation of Danzig towards Poland arising either from treaty provisions in force between them or from ordinary international law ;

(2) a : that Article 104 : 5 of the Treaty of Versailles contains a mandate, entrusted to the Principal Allied and Associated Powers and accepted by them, to ensure that the treaty to be concluded between Poland and Danzig (Convention of Paris) should include provisions binding on the Free City and safeguarding Polish nationals and other persons (including Danzig nationals) of

Polish origin or speech in the territory of Danzig against any differential treatment to their detriment on the ground of their Polish allegiance, origin or speech; that this provision, which is purely negative in character, does not establish any standard of comparison for the application of the prohibition of discrimination;

b: that as between Poland and Danzig, the question of the treatment of Polish nationals and other persons of Polish origin or speech in the territory of the Free City is governed by the provisions of Article 33, paragraph 1, of the Convention of Paris, but that in case of doubt as to the interpretation of that article, recourse may be had, in order to dissipate such doubt, to Article 104: 5 of the Treaty of Versailles;

c: that, under Article 33, paragraph 1, of the Convention of Paris, Danzig has undertaken

to apply to Polish nationals and other persons of Polish origin or speech in the territory of the Free City the minority system contemplated by Chapter I of the Treaty of June 28th, 1919, between the Principal Allied and Associated Powers and Poland, as that system is actually applied in Poland by the Polish Government,

and to avoid in her legislation or in the conduct of her administration any differential treatment to the detriment of the aforesaid Polish nationals and other persons, on account of their Polish allegiance, origin or speech, either in the application to the minorities in her territory of provisions similar to those applied to minorities in Poland by the Polish Government, or in the grant of more extensive rights to these minorities or to foreigners not belonging to minorities;

d: that the question whether, in a given case, an act or failure to act constitutes a breach of the provisions of Article 33, paragraph 1, of the Convention of Paris is essentially one of fact to be decided on the merits of each case.

Done in French and English, the French text being authoritative, at the Peace Palace, The Hague, this fourth day of February, one thousand nine hundred and thirty-two, in two copies, one of which is to be placed in the archives of the Court, and the other to be forwarded to the Council of the League of Nations.

(Signed) M. ADATCI,
President.

(Signed) Å. HAMMARSKJÖLD,
Registrar.

M. Guerrero, Vice-President, Count Rostworowski, MM. Fromageot and Urrutia, Judges, declaring that they are unable to concur in the Opinion given by the Court and availing themselves of the right conferred on them by Article 71 of the Rules of Court, have delivered the dissenting opinion which follows hereafter.

Sir Cecil Hurst, whilst concurring in the operative portion of the present Opinion, declares that he is unable to agree in regard to the grounds on which it is based, and accordingly has delivered the separate opinion which follows hereafter.

Baron Rolin-Jaequemyns, Judge, whilst in agreement with the replies given by the Court to the questions submitted to it by the Council, declares that he is unable entirely to accept some of the arguments on which these replies are based; in this connection he refers to the reservations set out in the note of Sir Cecil Hurst reproduced below, in which he concurs.

(Initialled) M. A.

(Initialled) Å. H.